

25SMCV03191 25SMCV03191

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-20

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C08%2F20%2F2026

Source SHA-256: 1c2eea83e3469d4dcfd1ffe2590dd78f761857f13e2516f80a79f67181562d85

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 20, 2026

CASE NUMBER

25SMCV03191

MOTIONS

Demurrer and Motion to Strike Portions of Second Amended
Complaint

MOVING PARTIES

Defendants Sean Combs; Daddy's House Recordings, Inc.; CE
Opco, LLC d/b/a Combs Globa f/k/a Combs Enterprises LLC; Bad Boy
Entertainment Holdings, Inc.; Bad Boy Productions Holdings, Inc.; Bad Boy
Books Holdings, Inc.; Bad Boy Entertainment LLC; and Bad Boy Productions, LLC

OPPOSING PARTY

none

MOTIONS

This case arises from allegations of sexual assault.

The operative Second Amended Complaint ("SAC") filed by Plaintiff Michael West ("Plaintiff") against Defendants Sean Combs ("Combs"); Daddy's House Recordings, Inc. ("Daddy's House"); CE Opco, LLC d/b/a Combs Global f/k/a Combs Enterprises LLC ("CE Opco"); Bad Boy Entertainment Holdings, Inc.; Bad Boy Productions Holdings, Inc.; Bad Boy Books Holdings, Inc.; Bad Boy Records; Bad Boy Entertainment LLC; and Bad Boy Productions LLC alleges three causes of action for (1) sexual assault & battery; (2) gender violence; and (3) negligent supervision.

Moving Defendants Combs, Daddy's House Recordings, Inc.; CE Opco, Bad Boy Entertainment Holdings, Inc.; Bad Boy Productions Holdings, Inc.; Bad Boy Books Holdings, Inc.; Bad Boy Entertainment LLC; and Bad Boy Productions, LLC ("Moving Defendants") demur to all three causes of action on the grounds that the SAC fails to state facts sufficient to constitute a cause of action and uncertainty, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), respectively.

Moving Defendants also move to strike the first twenty-two (22) paragraphs of the SAC, providing various factual allegations alleging Defendants' background and history as immaterial, irrelevant, and improper under California law.

Both the demurrer and motion to strike are unopposed.

ANALYSIS

1.

DEMURRER

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts "[a]s true all material facts properly pled and matters which may be judicially noticed but

disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (290 Division (EAT), LLC v.

City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 [“in considering the merits of a demurrer, however, “the facts alleged in the pleading are deemed to be true, however improbable they may be”].)

Further, in ruling on a demurrer, a court must “liberally construe” the allegations of the complaint “with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) “This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant.” (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, “[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

UNCERTAINTY

“[D]emurrers for uncertainty are disfavored.” (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.) “A demurrer for uncertainty will be sustained only where the pleading is so bad that the responding party cannot reasonably respond - i.e., [a party] cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against [the party].” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 7:85, p. 45, emphasis in original.)

As such, where a demurrer is made upon the ground of uncertainty, the demurrer must distinctly specify exactly how or why the pleading is uncertain, and where such uncertainty appears by reference to page and line numbers.

(See *Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [“Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty”].)

Moving Defendants argue that the SAC is uncertain as to the corporate defendants because it lumps together multiple corporate entities and Doe defendants without identifying which entity allegedly did what, when, and how.

Because there is no heightened pleading requirement, in general, Plaintiff need not allege specific facts regarding the when, what, and how.

Notwithstanding, Plaintiff may not conflate the conduct of multiple defendants without making clear who is alleged to have done what.

Here, Plaintiff alleges:

24.

Defendant Sean Combs is a male who, on information and belief, resides in New York City, and who is otherwise currently incarcerated in the Metropolitan Detention Center in Brooklyn. On information and belief, at all relevant times Combs owned and/or controlled Bad Boy Entertainment Holdings, Inc., Bad Boy Productions Holdings, Inc., Bad Boy Books Holdings, Inc., Bad Boy Records, Bad Boy Entertainment LLC, Bad Boy Productions LLC, (collectively “Bad Boy”), Daddy’s House Recording Studio, Inc., and CE OPCO, LLC d/b/a Combs Global, f/k/a Combs Enterprises LLC (all together, the “Combs Corporations”). The facts of Combs’ ownership and titles at the Combs Corporations enabled and conspired with him to commit the unlawful sexual violence against Plaintiff described herein and/or to harass and subsequently intimidate him into silence after the sexual assault.

25.

Defendant Daddy’s House Recordings, Inc. (“Daddy’s House”) is a domestic business corporation that is incorporated in New York and on information and belief can be served through its Registered Agent, Corporation Service Company,

located at 80 State Street, Albany, NY 12207. Combs is listed as the CEO in public filings, with a listed address of 1710 Broadway, New York, NY 10019. At the time of the events alleged herein, Daddy's House was a world-class recording studio owned by Combs located at 321 W 44th Street, Suite 201, New York, New York 10036. On information and belief, at all relevant times, Bad Boy and Combs together owned and operated Daddy's House. On information and belief, the Bad Boy recording studio was located on the premises of Daddy's House. Combs used the Daddy's House brand, stature and their ownership and titles at Daddy's House to commit the unlawful sexual violence against Plaintiff described herein.

26.

Defendant CE OPCO, LLC d/b/a Combs Global, f/k/a Combs Enterprises LLC ("Combs Global") is a limited liability company incorporated in Delaware and on information and belief can be served through its Registered Agent, EResidentAgent, Inc., 1013 Centre Road, Suite 403-S, Wilmington, DE 19805. On information and belief, all members of Combs Global are citizens of Delaware, New York, and/or California. On information and belief, Combs Global is an alter ego for Combs and/or a successor in interest to Combs' other corporations and/or was established or used by Combs for the purpose of moving, disposing of, and/or insulating his assets, including in connection with his criminal activities and to avoid liability. Combs Global currently owns, controls, and/or oversees Bad Boy and Combs' other business ventures in the music, fashion, fragrance, beverage, marketing, film, television, and media industries.

27. As

part of his renowned Bad Boy record label and brand, Combs has established several corporate entities under the "Bad Boy" name over the past few decades, including but not limited to Bad Boy Entertainment Holdings, Inc., Bad Boy Productions Holdings, Inc., Bad Boy Books Holdings, Inc., Bad Boy Records, Bad Boy Entertainment LLC, and Bad Boy Productions LLC (together, "Bad Boy"). On information and belief, all Bad Boy corporate entities are alter egos for Combs, are controlled and/or directed by Combs, and/or were established or used by Combs for the purpose of moving, disposing of, and/or insulating his assets, including in connection with his criminal activities and to avoid liability. On information and belief, all active Bad Boy entities are now owned and/or controlled by Combs and/or by Combs Global. Combs used the Bad Boy premises/recording studio and their ownership and titles at Bad Boy to commit the unlawful sexual violence against Plaintiff described herein and/or to

harass and subsequently intimidate him into silence after the sexual assault.

[...]

30. Each

of the Combs Corporations (a) aided and abetted Combs in committing the unlawful sexual violence against Plaintiff described herein, (b) are alter egos for Combs, completely dominated by him and used for his personal interests and to engage in wrongdoing which harmed Plaintiff and others, and/or (c) serve or have served as vehicles for Combs to move, dispose of, and/or insulate his assets, including in connection with his criminal activities and to avoid compensating the victims of his many crimes, including Plaintiff. [...]

34. On

June 20, 2023, Plaintiff, was utilizing the dating app Grindr when he matched with an individual who described himself as a party promoter. He invited Plaintiff to attend what was described as an exclusive party that would be attended by A-list celebrities. He provided Plaintiff with the address for the party, as well as instructions for how to get in once he arrived. The address that Plaintiff was provided was 200 S Mapleton Drive, Los Angeles, CA 90024. Upon information and belief, Defendant Sean Combs owned and lived at this address.

35.

Plaintiff took a taxi to the address, and, once he arrived, was immediately taken by the impressive \$60 million home. At the door, he was required to show proof that he was invited to the party. His phone was then taken by the event security, who informed him that he would be able to get it back after the party was over. Plaintiff entered the party, which was in full swing by the time he arrived. Plaintiff mingled with the other guests, noting the presence of several high-profile individuals in the entertainment industry.

36.

Plaintiff observed the party, which encompassed numerous different rooms—some of which had individuals engaging in sexual acts inside of them. Plaintiff made his way to a room that resembled a lounge area, with partygoers sitting, drinking, and conversing. He noticed that there were numerous bottles of champagne in ice buckets for the partygoers. Plaintiff, wanting a drink, helped himself to a glass of champagne from one of the open bottles. Shortly after finishing his first drink, Plaintiff began to feel abnormally lightheaded—a sensation that far exceeded what one would expect to feel after a single glass

of champagne. Plaintiff's memory quickly faded into a blackout.

37. The

next thing that Plaintiff recalled was awakening on the floor with his pants around his ankles. Plaintiff noticed that his genitals were exposed and that someone was groping and manipulating his penis. He looked around, and saw that the individual groping him was Sean Combs, and that two other black males were present, watching. He got up, exclaiming "whoa, this ain't cool!" Plaintiff pulled his pants back up and attempted to leave. Defendant Combs made no effort to stop him from leaving, and Plaintiff quickly exited the party without retrieving his phone.

[...]

46. The

Combs Business enabled and conspired with Combs to commit the offending sexual battery because Combs sexually assaulted Plaintiff at a party related to or referencing the Combs Business. On information and belief, Combs Businesses routinely committed sexual assault and sexual battery, as detailed in other civil lawsuits, to further the business purpose of Combs' enterprise. Given Combs' long-standing pattern and practice of committing sexual violence, the Combs Business had and/or should have had knowledge of Combs using parties and venues for this unlawful conduct, and did nothing to stop it.

47. The

Combs Business enabled and conspired with Combs to commit the offending sexual battery by failing to, among other things, protect Plaintiff from a known danger and/or have sufficient policies and procedures in place to prevent sexual battery and/or train their employees on identifying and preventing sexual battery. Given Combs' long-standing pattern and practice of committing sexual violence, including on premises owned and/or operated by Defendants, the Combs Corporations had and/or should have had knowledge that Combs was a danger to Plaintiff, and did nothing to stop Combs.

48. The

Combs Business enabled and conspired with Combs to commit the offending sexual battery by failing to properly supervise. The Combs Business had knowledge and/or should have had knowledge of Combs' widespread and well-known practice of committing sexual battery and gender-motivated violence, including on premises owned and/or operated by Defendants, and did nothing to stop it.

49. The

Combs Corporations further enabled and conspired with Combs to commit the offending sexual battery by actively placing, maintaining, and/or employing Combs in positions of power and authority, despite the fact that they knew and/or should have known that Combs had a widespread and well-known practice of committing sexual assault and sexual battery, including on premises owned and/or operated by Defendants. Combs used his titles and authority conferred by the Combs Business, including as CEO, Founder, and Chairman to facilitate and perpetuate the violent assault on Plaintiff, and to intimidate and force Plaintiff to keep quiet in subsequent years.

50. On

information and belief, Plaintiff alleges that Defendant Organizational Does 1 through 10, inclusive, are other parties not yet identified who have enabled and conspired with Combs to commit the offending sexual battery, in the ways articulated above and/or in other ways, and/or ratified the sexual battery thereafter.

51. On

information and belief, Plaintiff alleges that Defendant Individual Does 1 through 10, inclusive, are other parties not yet identified who have enabled and conspired with Combs to commit the offending sexual battery, in the ways articulated above and/or in other ways.

(SAC ¶¶ 24-51.)

On these facts—where

Plaintiff matched with a party promoter on a dating app who invited him to attend a celebrity party in Combs' private home where he saw partygoers engaged in sexual acts, before he drank what appears to be a glass of champagne that had been drugged, causing him to lose consciousness and awake to Combs manipulating his genitals—it is unclear how any of Combs' companies, much less all of them, were involved in the alleged conduct at all. As such, the SAC is uncertain as to which companies are alleged to have done what.

Therefore, the Court sustains

the demurrer of the moving entity Defendants Daddy's House Recordings, Inc.; CE Opco, Bad Boy Entertainment Holdings, Inc.; Bad Boy Productions Holdings, Inc.; Bad Boy Books Holdings, Inc.; Bad Boy Entertainment LLC; and Bad Boy

Productions, LLC on the grounds of uncertainty.[1]

B.

FAILURE TO STATE A CAUSE OF ACTION

i.

Second Cause

of Action – Gender Violence

“Any person who has been subjected to gender violence may bring a civil action for damages against any responsible party. The plaintiff may seek actual damages, compensatory damages, punitive damages, injunctive relief, any combination of those, or any other appropriate relief. A prevailing plaintiff may also be awarded attorney’s fees and costs.”

(Civ. Code, § 52.4, subd. (a).) The code defines “gender violence” as a form of sex discrimination that means either of the following:

(1) One or more acts that would constitute a criminal offense under state law that has as an element the use, attempted use, or threatened use of physical force against the person or property of another, committed at least in part based on the gender of the victim, whether or not those acts have resulted in criminal complaints, charges, prosecution, or conviction.

(2) A physical intrusion or physical invasion of a sexual nature under coercive conditions, whether or not those acts have resulted in criminal complaints, charges, prosecution, or conviction.

(Civ. Code, § 52.4, subd. (c).)

Combs demurs on the grounds that Plaintiff fails to allege a gender-based motivation as required by the Code. Indeed, Plaintiff alleges Combs has a history of sexually assaulting and battering both men and women alike:

7. For years Combs and his businesses engaged in a persistent and pervasive pattern of abuse toward women, men, and minors. This abuse was, at times, verbal, emotional, physical and sexual. As part of his pattern of abuse, Combs manipulated both men and women to participate in

highly-orchestrated performances of sexual activity with both commercial sex workers and unsuspecting partygoers. In some cases, these were individuals who were contractors or vendors. In other cases, they were random individuals pulled from a hotel lobby, a show, or off the street. Combs ensured participation from these individuals by, among other things, obtaining and distributing narcotics to them with or without their knowledge, controlling their careers, leveraging his financial support and threatening to cut off the same, and using intimidation, violence, and illicit drugs.

19. In September 2024, singer and songwriter

Dawn Angelique Richard also sued Combs. Richard was employed by Combs as part of the girl group Danity Kane, formed by Combs, and later as a key member of Combs' band Diddy – Dirty Money. She sued Combs in New York for sexual assault, false imprisonment, and for subjecting her to hostile working conditions due to her gender, including degrading comments and threats. Ms. Richard has alleged that Combs regularly supplied others including minors with copious amounts of drugs and alcohol, and subjected them to sexual acts while they were sedated and/or unconscious due to the drugs and alcohol.

21. Combs' long history of violence

unequivocally establishes that his actions are motivated by gender – both men and women. Combs has a profound contempt for women and a desire to dominate both minors and other men. His conduct shows a longstanding practice of denigrating, defeating and attempting to humiliate men, women and children. His practices and desires are different for men, women and children. But his actions are unequivocally motivated by the victims' particular gender and age.

(SAC

¶¶ 7, 19, 21.)

Thus, Plaintiff's own allegations

believe his assertion that Combs' alleged sexual assault/battery of Plaintiff was motivated by gender or a form of sex discrimination.

Therefore the Court sustains Combs' demurrer to the second cause of action.

2.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

Upon review, the Court agrees that some, but not all of the contested allegations are irrelevant and improper. As such, the Court rules as follows with regard to Defendants' motion to strike:

Paragraph 1: Denied. This paragraph provides relevant background on Defendant Combs.

Paragraph 2: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of sexual abuse.

Paragraph 3: Granted. Allegations that Combs used his business enterprise to perpetuate the sexual abuses is irrelevant, in light of the Court's sustaining of the demurrer as to the moving entity defendants.

Paragraph 4: Granted. Allegations that Combs used his business enterprise to perpetuate the sexual abuses is irrelevant, in light of the Court's sustaining of the demurrer as to the moving entity defendants.

Paragraph 5: Granted. Allegations that members and associates of Combs' businesses engaged in sex trafficking, forced labor, interstate transportation for the purposes of prostitution, coercion, and enticement to engage in prostitution, narcotics offenses, kidnapping, arson, bribery, and obstruction of justice are irrelevant, in light of the Court's sustaining of the demurrer as to the moving entity defendants.

Paragraph 6: Granted. Allegations that Combs used his business enterprise to perpetuate the sexual abuses is irrelevant, in light of the

Court's sustaining of the demurrer as to the moving entity defendants.

Paragraph 7: Granted as to "and his businesses" only. Denied otherwise, as the majority of this paragraph provides relevant background on Defendant Combs' alleged history of sexual abuse.

Paragraph 8: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of abuse.

Paragraph 8(a): Granted. Allegations about a criminal shooting matter upon which Combs was acquitted are irrelevant.

Paragraph 8(b): Denied. This paragraph provides relevant background on Defendant Combs' alleged history of sexual abuse.

Paragraph 8(c): Granted. Allegations about contractual disagreements a trademark claims are irrelevant.

Paragraph 8(d): Denied. This paragraph provides relevant background on Defendant Combs' alleged history of sexual abuse.

Paragraph 9: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of drugging alcoholic beverages served at his parties.

Paragraph 10: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of abuse and sexual abuse.

Paragraph 11: Granted. Allegations about Combs' history of violence are irrelevant.

Paragraph 12: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of sexual abuse.

Paragraph 13: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of drugging and sexually assaulting a victim.

Paragraph 14: Denied. This paragraph provides relevant background

on Defendant Combs' alleged history of committing rape at an industry party.

Paragraph 15: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of committing rape.

Paragraph 16: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of forcing people to engage in unwanted sex acts and drugging people.

Paragraph 17: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of drugging and sexually assaulting people.

Paragraph 18: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of drugging and sexually abusing people.

Paragraph 19: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of drugging and sexually assaulting people.

Paragraph 20: Denied. This paragraph provides relevant background on Defendant Combs' alleged history of sexual abuse.

Paragraph 21: Denied. This paragraph provides relevant allegations about the motivations for Defendant Combs' alleged conduct toward Plaintiff.

Paragraph 22: Denied. This paragraph provides relevant allegations about the motivations for Defendant Combs' alleged conduct toward Plaintiff.

Paragraphs 39, 54, and 62: to the extent these paragraphs incorporate by reference paragraphs or portions of paragraphs that have been stricken, those paragraphs or portions of paragraphs are similarly stricken from the incorporation into Paragraphs 39, 54, and 62.

3.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential*

Assn., Inc. v. Hulven Int'l, Inc. (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See PGA West Residential Assn., Inc. v. Hulven Int'l, Inc., supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that "if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend." (See Major Clients Agency v Diemer (1998) 67 Cal.App.4th 1116, 1133; Graham v. Bank of America (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiff

has failed to meet his burden as Plaintiff has not opposed the demurrer or motion to strike and therefore does not address whether leave should be granted if either the demurrer is sustained or the motion to strike is granted.

CONCLUSION AND ORDER

For the reasons stated, the Court sustains the demurrer of moving entity defendants Daddy's House Recordings, Inc.; CE Opco, Bad Boy Entertainment Holdings, Inc.; Bad Boy Productions Holdings, Inc.; Bad Boy Books Holdings, Inc.; Bad Boy Entertainment LLC; and Bad Boy Productions, LLC to all three causes of action without leave to amend on the ground of uncertainty.

Further, the Court sustains without leave to amend Defendant Combs' demurrer to the second cause of action for failure to state facts sufficient to allege gender-based discrimination.

Because the third cause of action for negligent supervision/retention appears directed solely at the entity defendants for failing to supervise/retain Defendant Combs and prevent him from sexually assaulting Plaintiff, the Court does not further address the demurrer to that cause of action as it is moot based upon the Court's sustaining of the moving entity defendants' demurrer on the ground of uncertainty.

Because Combs did not raise any arguments in his individual capacity as to the first cause of action for sexual assault and battery, to the extent Combs intended to demur to the first cause of action in his individual capacity, such demurrer is overruled.

As for the Motion to Strike, the Court grants in part Moving Defendants' motion to strike paragraphs 3, 4, 5, 6, 8(a), 8(c), and 11 as irrelevant/improper without leave to amend. The Court further grants in part Moving Defendants' motion to strike "and his businesses" from paragraph 7 as irrelevant/improper without leave to amend. Further, to the extent these stricken paragraphs or portions of paragraphs are incorporated by reference into paragraphs 39, 54, and 62, they are stricken from those paragraphs as well.

The Court denies Moving Defendants' motion to strike paragraphs 1, 2, 7, 8, 8(b), 8(d), 9, 10, and 12-22.

Further, the Court orders Combs to file an Answer to the Second Amended Complaint on or before September 3, 2026.

Further, the Court will enter the proposed Orders lodged on July 24, 2026 in conformity with the ruling.

Counsel for Moving Defendants shall provide notice of the Court's ruling/Orders, and file the notice with a proof of service forthwith.

DATED: August 20, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court

[1] Because the Court sustains the entity defendants' demurrer on the ground of uncertainty, the Court does not separately analyze the third cause of action for negligent supervision/retention, which appears directed only at the entity defendants or the first cause of action for sexual assault and battery, to which only the entity defendants have raised arguments in the demurrer.